Further, in *Gostev v. Skillz Platform, Inc.* (2023) 88 Cal.App.5th 1035, the court pointed to several nonmutual terms, "including, most notably, the requirement that only the plaintiff arbitrate his claims against the defendant, in its determination that the agreement was substantively unconscionable." The comparison is apt. Here, the CSA carves out claims only Hyundai would have as exceptions to the agreement. (See Rao Decl. Ex. B at ¶14(C)(a) ["However, any dispute you or we may have relating to copyrights or other intellectual property shall not be governed by this agreement to arbitrate."]; see also *Carbajal v. CWPSC, Inc.* (2016) 245 Cal.App.4th 227, 243-244 [finding one-sided carve-outs to be substantively unconscionable].)

Both the shortened one-year statute of limitations provision, as well as the one-sided carve out provisions of the CSA are substantively unconscionable.

As to fees, Hyundai essentially argues plaintiff's argument is "frivolous" and a "misinterpretation," but provides no support for reading the agreement to mean anything other than what plaintiff asserts it means. Hyundai appears to concede that its recovery of fees would be more limited than for plaintiff pursuant to Song-Beverly statutes. In any event, the CSA limits Hyundai's liability to $500 or the total amount paid for connected services during the 12 months preceding a claim, "UNDER ANY THEORY (INCLUDING BUT NOT LIMITED TO FRAUD, MISREPRESENTATION, BREACH OF CONTRACT, PERSONAL INJURY, OR PRODUCTS LIABILITY)." (Rao Decl., Ex. B, ¶11 ["Limitations of Liability"], §(E) ["THE MAXIMUM AGGREGATE LIABILITY OF HYUNDAI"].)

These provisions, collectively relating to fees, are substantively unconscionable.

The CSA is accordingly unconscionable and incapable of severance.

13. 9:00 AM CASE NUMBER: MSC22-00422
CASE NAME: BRADSHAW VS FRANCO HERRERA, IOX, LLC
***HEARING ON MOTION IN RE: STRIKE DEFENDANTS EXPERTS WHO WERE IMPROPERLY DISCLOSED AS SUPPLEMENTAL EXPERTS**
FILED BY: BRADSHAW, DANIEL
<u>*TENTATIVE RULING:*</u>

This is a trial motion, so the hearing is **continued** to the Issue Conference date.

Discovery Law & Motion

14. 9:01 AM CASE NUMBER: C25-00500
CASE NAME: SHAMIKA MUHAMMAD VS. COLD AIR REFRIGERATION, INC.
***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER DISCOVERY RESPONSES AND SANCTIONS**
FILED BY: COLD AIR REFRIGERATION, INC.
<u>*TENTATIVE RULING:*</u>

Defendant Cold Air moves to compel response and production of documents on four specific requests, all generally concerned with agreements that plaintiff may have with medical providers concerning payment of medical bills for treatment for the injuries alleged in this lawsuit. The motion is **denied**.

On one hand, the Court is not much impressed with plaintiff's objections based on privacy or privilege. As Cold Air correctly points out, by suing to recover (among other things) her medical expenses, plaintiff has put her medical treatment, and payment for it, directly in issue, waiving any privacy interests she would otherwise have in this respect. And the communications and agreements sought here are not with attorneys or anyone else working on plaintiff's legal prosecution of this case.

Nor is the Court persuaded by plaintiff's objections to the breadth or alleged vagueness of the requests, which appear to be reasonably well crafted to inform plaintiff as to what is sought, while being worded broadly enough to avoid evasion.

But on the other hand, the Court cannot agree with Cold Air as to the relevance of these materials or Cold Air's asserted need to discover them. Plaintiff is seeking to recover the value of medical services she has received, and what she has had to pay (or become financially liable for) for those services. Agreements on how plaintiff is to come up with the money to pay for those services is not pertinent. If plaintiff had paid her medical bills by borrowing the money from her parents or a bank, that would not make the details of those loans relevant to the measure of damages for medical costs. Even if, by formal agreement or practical understanding, it were expected that the providers would be paid out of the proceeds of a recovery or settlement, that is not directly relevant either. The latter scenario is more akin to medical liens imposed by health carriers or Medicare, the only difference being plaintiff's express agreement to them in advance.

Cold Air argues that the prospect of being paid out of a recovery could be a source of testimonial bias for the doctors and other providers who may testify in the case. It can't be denied that that's a potential source of witness bias; but that's a fact of life built into the plaintiff-doctor relationship, independent of any particular agreements that may exist. Even without any agreement at all in place between a plaintiff and her doctors, it would very likely be the case that doctors would know they're more likely to get paid if the plaintiff recovers in court, and it could be suspected or argued that that might bias their testimony. Cold Air is already free to ask the doctor-witnesses about that, and to argue to jurors about such bias. The particular detailed mechanisms by which such financial incentives would operate are not important.

(The Court notes that of the three unpublished decisions cited in Cold Air's opposition, one could not be found on Lexis and the other two are neither relevant nor helpful.)

15. 9:01 AM CASE NUMBER: C23-01054
CASE NAME: SWEET ADELINE INC VS. TASTYWINGS INC
***HEARING ON MOTION FOR DISCOVERY COMPEL AND REQUEST FOR SANCTIONS**
FILED BY: TASTYWINGS INC
****TENTATIVE RULING:****

Defendant Tastywings moves to compel responses and production of documents in response to its requests for production, requests 38 through 47, in defendant's second set of RFPs (served on or about August 11, 2025). Plaintiff served no responses and produced no documents in response to these requests, and has filed no opposition to this motion.